

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2020-6603

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF JANA DAVIES, LICENSE NO. LPC 6140,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Jana Davies ("Respondent"), as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").

2. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado at all times relevant herein.

3. This Order is a full and final resolution of case number 2020-6603. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

4. Respondent admits the following:

a. On or around December 16, 2011, Respondent pled guilty to DWAI, a misdemeanor, in Case No. 2011T7533, in County Court, Jefferson County, Colorado. She was sentenced to two (2) years probation.

b. On or around June 24, 2020, Respondent pled guilty to DUI, a misdemeanor, in Case No. 2020T509, in County Court, Douglas County, Colorado. She was sentenced to 45 days electronic surveillance and two (2) years supervised probation.

c. On or about February 16, 2021, Respondent underwent a mental status examination with Peer Assistance Services, Inc. ("PAS"). The evaluator concluded that Respondent only safe to practice as a LPC with reasonable skill and safety, with treatment and monitoring.

5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Board finds that Respondent violated section 12-245-224(1)(e), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(e) Habitually or excessively uses or abuses alcohol, a habit-forming drug, or a controlled substance, as defined in section 18-18-102(5).

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license shall be placed on probation for a minimum period of three (3) years, commencing from the effective date of this Order. Credit toward satisfying the period of probation shall be given only during such periods of time that Respondent is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

- a. Respondent is not practicing as a LPC or engaged in the practice of professional counseling in the State of Colorado;
- b. Respondent is not actively participating in a Board-approved peer assistance services program as set forth below in paragraphs 8 and 9 of this Order; and
- c. Respondent is not otherwise in full compliance with the terms of this Order.

PEER ASSISTANCE SERVICES ("PAS")

8. As a term of this Order and Respondent's probationary status, Respondent shall enter into and successfully complete a contract with PAS for a minimum period of three (3) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later.

9. Respondent shall enter into a contract with PAS within fourteen (14) days from the effective date of this Order ("PAS Contract"). Respondent agrees to cease the practice of professional counseling after fourteen (14) days until such time as Respondent enters into her PAS Contract.

- a. Urine/Blood Screens. If required as a term of her PAS contract, Respondent shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Board, Respondent's employer, or Respondent's treatment program monitor, at a frequency determined by Respondent's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Respondent must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Respondent's treatment program with Respondent's application for discharge of the probation period.
- b. Other Requirements. Respondent shall comply fully and in a timely manner with all requirements, recommendations, restrictions, and directions of the treatment program, as specified in the PAS Contract signed by Respondent.
- c. Releases. Respondent hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Respondent's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Respondent's case to the Board upon its request. Respondent shall keep all releases current and in effect.
- d. Completion of Program. If Respondent satisfactorily completes the treatment program, verification to the Board by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Board to verify Respondent's completion of treatment. It is Respondent's responsibility to ensure that PAS submits verification to the Board of completion of treatment.
- e. Withdrawal from Program. Respondent must immediately notify the Board in writing if Respondent withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Respondent's treatment program.

TERMS AND CONDITIONS

10. Respondent will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

11. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

12. All expenses incurred or associated with any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

13. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

14. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

15. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

16. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

17. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

18. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

19. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

20. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by

electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

21. This Order shall be admissible as evidence at any hearing held before the Board.

22. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT

Jana Davies
JANA DAVIES
LICENSE No. LPC 6140

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELER EXAMINERS

Reina Sbarbaro-Gordon
REINA SBARBARO-GORDON
Program Director

Effective this 29 day of September,
2021.